

M/s Modi Nagar Paper Mills Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 January 2019 · Writ-C No. 1639 of 2019 · **Writ disposed; EE to consider 6.14 instalments; recovery stayed pending that decision.**

HEADNOTE

Writ seeking quashing of a 3 January 2019 demand for Rs. 1,97,34,832 electricity arrears is disposed without a merits decision. Paragraph 6.14 of the Electricity Supply Code, 2005 supplies the instalment remedy before the Executive Engineer. The consumer is directed to appear before the EE (Distribution), PVVNL, Ghaziabad; the EE shall hear and decide the representation in accordance with law within 15 days and may grant further instalments as permissible in law. Recovery under the demand remains in abeyance pending that decision.

FACTUAL SUMMARY

The petitioners, M/s Modi Nagar Paper Mills Ltd. and another, challenged a 3 January 2019 demand notice of Paschimanchal Vidyut Vitran Nigam Ltd. seeking recovery of Rs. 1,97,34,832 as arrears of electricity dues. Counsel for the distribution licensee stated that the petitioners had earlier been granted instalments by the Executive Engineer but had not cleared the arrears within the time so granted. The High Court noted the statutory instalment facility under paragraph 6.14 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for arrears

HOLDING

A writ seeking quashing of an electricity-arrears demand is not decided on merits where paragraph 6.14 of the Electricity Supply Code, 2005 affords a remedy of approaching the Executive Engineer for instalments. The writ is disposed with a direction that the EE consider the consumer's representation after hearing, in accordance with law, and may grant further instalments as permissible in law; recovery under the demand remains in abeyance pending that decision, subject to the consumer appearing as directed. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ seeking quashing of a 3 January 2019 demand for Rs. 1,97,34,832 electricity arrears is disposed without a merits decision. Paragraph 6.14 of the Electricity Supply Code, 2005 supplies the instalment remedy before the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE AND OF THE PETITIONERS' CLAIM TO HAVE IT QUASHED.

The Court expressly recorded that it had not adjudicated the claim on merit. ¶ 1